

26VECV01507 26VECV01507

County: los-angeles

Division: Civil Law and Motion

Department: I

Hearing date: 2026-08-12

Motion: DEFENDANT'S DEMURRER TO PLAINTIFFS' COMPLAINT WITH MOTION TO STRIKE

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Case Number: 26VECV01507 Hearing Date: August 12, 2026 Dept: I

SUPERIOR

COURT OF THE STATE OF CALIFORNIA

COUNTY

OF LOS ANGELES

NANCY DEWI; CYMAX PATHERNIA, LLC, a California

Limited Liability Company; CYMAX HOLDING, LLC DBA CYMAX HOMES, a Colorado

Limited Liability Company,

Plaintiffs,

vs.

HERTHA TAN;

and DOES 1-10, inclusive,

Defendants.

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CASE

NO: 26VECV01507

[TENTATIVE]

ORDER RE: DEFENDANT'S DEMURRER TO PLAINTIFFS'

COMPLAINT WITH MOTION TO STRIKE

Dept.

I

DATE:

AUGUST 12, 2026

TIME: 8:30 A.M.

COMPLAINT

FILED: MARCH 13, 2026

TRIAL

DATE: NONE

I.

BACKGROUND

On March 13, 2026, Plaintiffs Nancy Dewi ("Dewi"), Cymax Patheria, LLC ("Cymax Patheria"), Cymax Holding, LLC dba Cymax Homes ("Cymax Homes")(collectively "Plaintiffs") filed a complaint against Defendant Hertha Tan ("Defendant") and Does 1 to 10 alleging six causes of action: (1) quiet title; (2) breach of joint venture agreement; (3) breach of fiduciary duty; (4) partition by sale; (5) appointment of partition referee; and (6) accounting.

On June 22, 2026, Defendant filed a cross-complaint against Plaintiffs alleging eighteen causes of action: (1) financial elder abuse; (2) fraud/fraudulent inducement; (3) undue influence; (4) rescission of contract; (5) cancellation of instruments; (6) declaratory relief; (7) quiet title; (8) breach of fiduciary duty; (9) accounting; (10) conversion; (11) trespass; (12) intentional infliction of emotional distress; (13) fraudulent concealment; and (14) constructive trust.

On June 22, 2026, Defendant also filed the instant demurrer to and motion to strike portions of Plaintiffs' complaint.

On July 29, 2026, Plaintiffs filed their oppositions.

On August 5, 2026, Defendant filed her replies.

II.

LEGAL

STANDARDS

Demurrer

A

demurrer is a pleading that may be used to test the legal sufficiency of the factual allegations in a complaint. (Cal. Code of Civ. Proc. § 430.10.) There are two types of demurrers: general demurrers and special demurrers. (See *McKenney v. Purepac Pharmaceutical Co.* (2008) 167 Cal.App.4th 72, 77.)

General

demurrers can be used to attack pleadings for failure to state facts sufficient to constitute a cause of action or for lack of subject matter jurisdiction. (CCP § 430.10(e); *McKenney*, supra, 167 Cal.App.4th at 77.) Such demurrers can be used only to challenge defects that appear on the face of the pleading or from matters outside the pleading that are judicially noticeable; evidence or extrinsic matters are not considered. (CCP §§ 430.30 and 430.70; *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318; *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) To test the sufficiency of the cause of action, the Court admits “all material facts properly pleaded” and “matters which may be judicially noticed,” but does not consider contentions, deductions, or conclusions of fact or law. [Citation].” (*Blank*, supra, 39 Cal.3d at 318.) The Court gives these facts “a reasonable interpretation, reading it as a whole and its parts in their context.” (*Ibid.*) At the pleading stage, a plaintiff need only allege ultimate facts sufficient to apprise the defendant of the factual basis for the claim against him. (*Semole v. Sansoucie* (1972) 28 Cal. App. 3d 714, 721.) The face of the complaint includes exhibits attached to the complaint. (*Frantz v. Blackwell* (1987) 189 Cal.App.3d 91, 94.) “If facts appearing in the exhibits contradict those alleged, the facts in the exhibits take precedence.” (*Holland v. Morse Diesel Intern., Inc.* (2001) 86 Cal.App.4th 1443, 1447.)

CCP

§ 430.41 requires that “[b]efore filing a demurrer pursuant to this chapter, the demurring party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.” (CCP § 430.41(a).) The parties are to meet and confer at least five days before the date the responsive pleading is due. (CCP § 430.41(a)(2).) Thereafter, the demurring party shall file and serve a declaration detailing their meet and confer efforts. (CCP § 430.41(a)(3).)

When

a demurrer is sustained, the Court determines whether there is a reasonable possibility that the defect can be cured by amendment. (Blank, supra, 39 Cal.3d 311, 318.) When a plaintiff "has pleaded the general set of facts upon which his cause of action is based," the court should give the plaintiff an opportunity to amend his complaint, since plaintiff should not "be deprived of his right to maintain his action on the ground that his pleadings were defective for lack of particulars." (Reed v. Norman (1957) 152 Cal.App.2d 892, 900.) Generally, the court will allow leave to amend on at least the first try, unless there is absolutely no possibility of overcoming the issue. (See Angie M. v. Superior Court (1995) 37 Cal.App.4th 1217, 1227 ["Denial of leave to amend constitutes an abuse of discretion unless the complaint shows on its face it is incapable of amendment. (Citation.) Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given."].)

Motion to Strike

The court may, upon a motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (Cal. Code of Civ. Proc. § 436(a).) The court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Id. at (b).) The grounds for a motion to strike are that the pleading has irrelevant, false or improper matter, or has not been drawn or filed in conformity with laws. (Ibid.) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (CCP § 437.)

Leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Vaccaro v. Kaiman (1998) 63 Cal.App.4th 761, 768 ["When the defect which justifies striking a complaint is capable of cure, the court should allow leave to amend."].) The burden is on the complainant to show the Court that a pleading can be amended successfully. (Blank, supra, 39 Cal.3d 311, 318.)

Before filing a motion to strike, the moving party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to the motion to strike. (CCP § 435.5(a).)

III.

DISCUSSION

Meet and Confer

Defense counsel declares that, on June 19, 2026, they met and conferred with Plaintiffs' counsel regarding the instant demurrer and motion to strike via telephone. (Cai Decl. at ¶ 5.) The parties were unable to reach an agreement. (Id. at ¶ 6.) Accordingly, Defendant satisfies the meet and confer requirements of CCP §§ 430.41(a) and 435.5(a).

Demurrer

Defendant

demurs to Plaintiffs' first, second, third, fourth, and fifth causes of action for quiet title, breach of joint venture agreement, breach of fiduciary duty, partition by sale, and appointment of partition referee, respectively, on the grounds that each cause of action fails to state facts sufficient to constitute a cause of action. (See Demurrer at p. 2.)

First Cause of Action – Quiet Title

First, Defendant argues that Plaintiffs' first cause of action for quiet title fails because "Plaintiffs do not plead the real property interests required by the quiet title statute, the Complaint contradicts itself, the dispute is an intra-LLC governance dispute governed by the Revised Uniform Limited Liability Companies Act ('RULLCA'), and equity bars the relief sought." (Demurrer at 14:23-15:4.)

To

successfully plead a cause of action for quiet title, a plaintiff must allege ultimate facts providing (1) a description of the property; (2) plaintiff's title or interest and the basis; (3) defendant's asserting adverse claim or antagonistic property interest; (4) date as of which the determination is sought; and (5) prayer for determination of title. (See CCP § 761.020; see also *Lucas v. Sweet* (1956) 47 Cal.2d 20, 22 [sufficient to plead that plaintiff is the owner of described property and defendant wrongfully claims interest].) There is a "general rule that a cause of action to quiet title may be stated in general terms." (*Leeper v. Beltrami* (1959) 53 Cal.2d 195,

214.) For a plaintiff to show the required element of having title where there is a contract between the parties, there must be something legally wrong with the contract justifying relief or rescission. (Id. at 216.) “[A]bsent an interest in the property, a party has no standing to ask the court to quiet title in the property or to obtain damages for the cloud on title.” (Chao Fu, Inc. v. Wen Ching Chen (2012) 206 Cal.App.4th 48, 59.)

Here,

Plaintiffs allege that this action “arises out of the breach of a joint venture agreement to renovate and rent the residential real property commonly known as 15925 Parthenia Street, North Hills, California 91343 (‘Property’) . . .”

(Complaint at ¶ 1.) Plaintiff Cymax Patheria was “formed for the sole purpose of rehabilitating and renting the Property, which is the sole asset of Cymax Patheria.” (Id. at ¶ 3.) Plaintiffs Dewi and Cymax Homes both hold a 33.3% interest in Cymax Patheria. (Id. at ¶¶ 2 and 4.) Defendant also holds a 33.3% interest in Cymax Patheria. (Id. at ¶ 3.) Plaintiffs allege that Defendant transferred ownership of the Property to Cymax Patheria on April 13, 2022. (Id. at ¶ 5.) Plaintiffs further allege that the terms of the joint venture to repair and rehabilitate the Property were set forth in the Cymax Patheria Operating Agreement (the “Operating Agreement”), attached to Plaintiffs’ complaint as Exhibit 1. (Id. at ¶ 9; see Exh.

1 [Operating Agreement].) Plaintiffs allege that they have performed all duties pursuant to the Operating Agreement since March 31, 2022. (Complaint at ¶ 11.) Plaintiffs further allege that, since March 31, 2022, Defendant “has appeared at the Property unannounced and scared the tenants; withheld tax documentation required for the short-term rental permit; demanded monthly income although Cymax Patheria has not yet realized a profit; and gleefully stated that she will move back into the Property, in clear violation of the Operating Agreement.” (Id. at ¶ 12.) On March 6, 2026, Plaintiffs received a letter from defense counsel stating that Defendant repudiated the Operating Agreement. (Id. at ¶ 13; Exh. 2 [correspondence].) Plaintiffs allege that the repudiation letter constitutes a material breach of the Operating Agreement, thereby depriving Plaintiffs of the benefit of their bargain. (Id. at ¶ 14.) Consequently, Plaintiffs seek to quiet title against the claims of Defendant as follows: Plaintiffs Dewi and Cymax Homes have a 66.6% interest in the Property; Defendant has a 33.3% interest in the Property. (Id. at ¶ 18.)

Defendant

argues that “[Plaintiffs’] alleged interests are membership interests in Cymax

Parthenia, LLC. Cymax Parthenia, LLC, in turn, allegedly holds title to the Property. Plaintiffs therefore attempt to quiet title based on LLC membership and internal ownership allegations, not direct real property interests.” (Demurrer at 15:6-24.) Defendant cites Cal. Corp. Code § 17705.1, providing that “[a] transferable interest is personal property.” (See Corp. Code § 17705.1.) Notably, in *Kwok v. Transnation Title Ins. Co.* (2009) 170 Cal.App.4th 1562, the court held that “as members of [an] LLC, appellants never held an ownership interest in the property to which the LLC held title.” (Kwok, *supra*, 170 Cal.App.4th at 1570.) “A member or assignee has no interest in specified limited liability company property.” (*Denevi v. LGCC, LLC* (2004) 121 Cal.App.4th 1211, 1214.)

Finally, Defendant argues that equity bars Cymax Parthenia from quieting title against Defendant, whose property it allegedly acquired by fraud. (Demurrer at 17:24-18:15.) Notably, this argument will not be considered upon a demurrer, where a court only considers the sufficiency of the pleadings as alleged. (See *Semole*, *supra*, 28 Cal. App. 3d at 721.)

Notwithstanding the foregoing, Defendant’s demurrer to Plaintiffs’ first cause of action for quiet title is sustained with leave to amend on the grounds that Plaintiffs fail to allege an ownership interest in the real property.

Second Cause of Action – Breach of Joint Venture Agreement

Next, to successfully plead a cause of action for breach of joint venture agreement, a plaintiff must allege ultimate facts showing (1) joint interest in a common business; (2) with an understanding to share profits and losses; and (3) a right to joint control. (*April Ent., Inc. v. KTTV* (1983) 147 Cal.App.3d 805, 818-820.) Joint venturers have the fiduciary duty to act with the highest good faith towards each other as to affairs of the joint venture. (*Pellegrini v. Weiss* (2008) 165 Cal.App.4th 515, 524.) “Whether a partnership or joint venture exists is primarily a factual question to be determined by the trier of fact from the evidence and inferences to be drawn therefrom.” (*Filippo Industries, Inc. v. Sun Ins. Co. of N.Y.* (1999) 74 Cal.App.4th 1429, 1444.)

See discussion

of Plaintiffs' complaint supra at 6:3-7:2. Plaintiffs further allege that Defendant materially breached the joint venture agreement by sending Dewi and Cymax Homes a letter from her attorney wherein Defendant repudiated the Operating Agreement without cause and subsequently terminated the joint venture. (Complaint at ¶ 22.)

In her

demurrer, Defendant argues that the parties' agreement is an LLC Operating Agreement, not a joint venture agreement. (Demurrer at 18:24-19:13.) Defendant cites Section 4.1 which gives Dewi, as Managing Member, "complete and exclusive authority, power, and discretion to manage and control the business, property and affairs of the Company." (Ibid. [citing Complaint Exh. 1 [Operating Agreement] at Sec. 4.1].) Therefore, Defendant argues, there is no right of joint control pursuant to *Holtz v. Untied Plumbing & Heating Co.* (1957) 49 Cal.2d 501, 506-507. The Court agrees.

Even

assuming, arguendo, that a joint venture agreement existed, the terms of the Operating Agreement provide that "[a]ny member may withdraw without the unanimous approval of the Class A Members." (See Complaint Exh. 1 [Operating Agreement] at Sec. 3.2.) Based on the foregoing, Defendant's demurrer to Plaintiffs' second cause of action for joint venture agreement is sustained with leave to amend.

Third Cause of Action – Breach of Fiduciary Duty

Next, to successfully plead a cause of action

for breach of fiduciary duty, a plaintiff must allege ultimate facts showing (1) defendant owed plaintiff a fiduciary duty; (2) defendant breached that duty; and (3) damages. (*Charnay v. Cobert* (2006) 145 Cal.App.4th 170, 182; *Stanley v. Richmond* (1995) 35 Cal.App.4th 1070, 1086.) Allegations of the ultimate fact of agency sufficiently allege a fiduciary relationship without any need for "explaining how this fact of agency originated . . ." (*Skopp v. Weaver* (1976) 16 Cal.3d 432, 439.) However, facts giving rise to a confidential, fiduciary or trustee relationship must be pled, and a "bare allegation that defendants assumed a fiduciary relationship" is an improper conclusion. (*Zumbrun v. Univ. of So. Cal* (1972) 25 Cal.App.3d 1, 13.) A fiduciary relationship may be alleged when one "must either knowingly undertake to act on behalf and for the benefit of another, or must enter into a relationship which imposes that undertaking as a matter of law." (*Oakland*

Raiders v. National Football League (2005) 131 Cal.App.4th 621, 632.)

See discussion

of Plaintiffs' complaint supra at 6:3-7:2. Plaintiffs also allege that Defendant breached her fiduciary duties to Plaintiffs by "repudiating and terminating the joint venture, without cause . . . thereby preventing plaintiffs from accomplishing the joint venture goals and making a profit . . . As a result of such conduct, plaintiffs have incurred substantial damages including loss of money and time, entitling plaintiffs to compensatory damages in excess of \$500,000 . . ." (Complaint at ¶ 27.)

In her demurrer, Defendant argues that no joint venture was formed, so no joint venture fiduciary duties exist. (Demurrer at 22:1-9.) Defendant further argues that the Revised Uniform Limited Liability Company Act ("RULLCA") only imposes fiduciary duties on managers – not passive, non-managing members. (Id. at 22:11-24.) Again, as discussed supra, the Operating Agreement permits withdrawal, at any time, without the approval of Class A Members. (See Complaint Exh. 1 [Operating Agreement] at Sec. 3.2.) Accordingly, Plaintiffs fail to plead any breach of fiduciary duty.

Defendant's demurrer to Plaintiff's third cause of action for breach of fiduciary duty is sustained with leave to amend.

Fourth and Fifth Cause of Action – Partition by Sale and Appointment of Partition Referee

Next, to successfully plead a cause of action for partition by sale, a plaintiff must plead coownership of real property. (See CCP § 871.210(a).) As discussed supra at 7:3-13, Plaintiffs fail to plead an ownership interest in the real property. Plaintiffs' fifth cause of action for appointment of partition referee fails for the same reason. Accordingly, Defendant's demurrer to Plaintiffs' fourth and fifth causes of action for partition by sale and appointment of partition referee are sustained with leave to amend.

Motion to Strike

Next, Defendant moves to strike language from Plaintiffs' complaint regarding punitive damages,

attorney's fees, and allegations that Defendant acted with oppression, fraud, or malice. (See Motion at p. 1.)

To state a claim for punitive damages under Cal. Civ. Code § 3294, a plaintiff must allege specific facts showing that the defendant has been guilty of malice, oppression or fraud.

(Smith v. Superior Court (1992) 10 Cal. App. 4th 1033, 1042.) The basis for punitive damages must be pled with specificity; conclusory allegations devoid of any factual assertions are insufficient. (Id.) A motion to strike may lie where the facts alleged, if proven, would not support a finding that the defendant acted with malice, fraud or oppression. (Turman v. Turning Point of Central California (2010) 191 Cal. App. 4th 53, 63.)

Here, the basis of Plaintiffs' claims are that Defendant exercised her right to withdraw from the Operating Agreement. (See discussion of Plaintiffs' complaint supra at 6:3-7:2.) Therefore, Plaintiffs fail to plead that Defendant acted with oppression, fraud, or malice. Defendant's motion to strike is granted as to punitive damages and related language.

Next, the Court addresses Defendant's motion to strike Plaintiffs' request for attorney's fees. Attorney's fees are only recoverable when authorized by contract, statute or law. (CCP § 1021; Reid v. Valley Restaurants, Inc. (1957) 48 Cal.2d 606, 610.) In opposition, Plaintiffs note that paragraph 12.7 of the Operating Agreement provides for recovery of attorney's fees in the event of a dispute between the Company or its members. (See Complaint Exh. 1 at ¶ 12.7.) Accordingly, Defendant's motion to strike Plaintiffs' request for attorney's fees is denied.

Leave to Amend

Generally, the court will allow leave to amend on at least the first try. (See Angie, supra, 37 Cal.App.4th at 1227 ["Denial of leave to amend constitutes an abuse of discretion unless the complaint shows on its face it is incapable of amendment. (Citation.) Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given."].)

Based on the foregoing,
Defendant's demurrer to Plaintiffs' complaint is sustained in its entirety with
leave to amend.

Defendant's motion to
strike Plaintiffs' request for punitive damages and related language is granted
with leave to amend.

IV. CONCLUSION

Defendant's
demurrer is SUSTAINED in its entirety with leave to amend.

Defendant's
motion to strike punitive damages and related language is GRANTED with leave to
amend.

Defendant's
motion to strike attorney's fees is DENIED.

Moving
party to give notice.

Dated: August
____, 2026 _____

Hon. Karen Moskowitz

Judge of the Superior
Court